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12 June 1929, We Could Have Easily Escaped

It was before the Punjab High Court in Lahore that Bhagat Singh had his second courtroom statement made on 12 June 1929. He argued that he and B.K. Dutt could not have been properly convicted before the sessions court because ‘the point is as to what were our intentions’. What he meant by this was that ‘[a]ccording to the famous jurist Solomon, one should not be punished for this criminal offence if his aim is not against the law’.[1] Pressing his point further, he explained, ‘The point to be considered is that the two bombs we threw in the Assembly did not harm anybody physically or economically. As such the punishment awarded to us is not only very harsh but revengeful also.’ He was, of course, entirely right in making this claim both as a matter of logic and of law. And convinced of this he gave an example. It was one which the two high court judges, Justices Sir Cecil Forde and James Addison, would have found unnerving. He said, ‘The question of motive is of special importance. Take the example of General Dyer. He resorted to firing and killing hundreds of innocent and unarmed people. But the military court did not order him to be shot. It gave him lakhs of rupees as award.’[2] Then came the defiance. It was clear. And it was uncompromising. This was to say that ‘under these circumstances, please permit us to assert that a government which seeks shelter behind such methods has no right to exist. If it exists, it is for the time being only, and that too with the blood of thousands of people on its head. If the law does not see the motive there can be no justice, nor can there be stable peace’.[3] So pure were the motives of Bhagat Singh and B.K. Dutt that ‘[t]he Sessions Judge admitted that we could have very easily escaped, had we any intention like that. We accepted our offence and gave a Statement